



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

September 15, 2022

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 202101995 regarding Detective Pedro Gomez, Tax No. 936676 (DADS No. 2022-26922)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Detective Gomez do not rise to the level of actionable misconduct.

In this matter, Detective Gomez took appropriate actions while he was assisting fellow officers in an effort to apprehend an individual who was wanted in connection with a recent shooting. Detective Gomez was alone and maintaining surveillance of an apartment, when he stopped and frisked an individual who exited the very apartment that he was watching and was about to be searched for the shooting suspect. These actions took place as the remainder of the warrant team was about to arrive to enter and search the apartment and were reasonable and appropriate. Further, there is insufficient evidence to support a finding that a business card was not provided to the individual by Detective Gomez.

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Website: <http://nyc.gov/nypd>

Therefore, based on the foregoing, the Police Commissioner has determined that Detective Gomez will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 212-11 (Investigative Encounter/Stop and Frisk) and Administrative Guide Procedure 304-11 (Compliance with New York City Right to Know Act/Right to Know Business Card).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a stylized flourish extending to the right.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office